

File No./Escrow No.: 22-10436
Print Date & Time: 4/13/2022 10:37:32 AM
Officer/Escrow Officer: Kristin Snyder

Meridian Title Corporation
4440 Edison Lakes Pkwy
Ste. 100
Mishawaka, IN 46545
(574) 271-3777

Property Address: 3627 COOPER COURT
SOUTH BEND, IN 46614 (SAINT JOSEPH)
(018-7210-7783)

Buyer: RYAN LUTZ AND SARA LUTZ

Seller: BRIAN A. PAGE AND MARYAH M. BOOZER
3627 Cooper Court
South Bend, IN 46614

Lender: Notre Dame Federal Credit Union
P.O. Box 7878, 1828 Moreau Drive, Notre Dame, IN 46556

Settlement Date: 4/13/2022

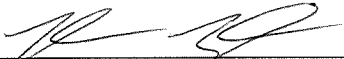
Seller			Description	Buyer	
P.O.C.	Debit	Credit		P.O.C.	Credit
			Deposits, Credits, Debits		
		\$199,000.00	Sale Price of Property		\$199,000.00
			Deposit		\$2,000.00
			Application Deposit		\$425.00
			Prorations		
	\$750.00		Seller Credit		\$750.00
	\$477.70		County Taxes 1/1/2022 to 4/13/2022 @ \$1,709.42/Year		\$477.70
	\$876.21		2021/2022 Fall Property Taxes		\$876.21
			Payoffs		
	\$97,019.44		Payoff of First Mortgage Loan to Notre Dame Federal Credit Union		
	\$23,951.13		Payoff of Second Mortgage Loan to Notre Dame Federal Credit Union		
			Commissions		
			Administrative Brokerage Commission to Howard Hanna SB Real Estate		\$250.00
	\$5,970.00		Real Estate Commission to Howard Hanna SB Real Estate		
	\$5,970.00		Real Estate Commission to Howard Hanna SB Real Estate		
	\$250.00		Administrative Brokerage Commission to Howard Hanna SB Real Estate		
			New Loans		
			Loan Amount		\$176,400.00
			Our origination charge \$800.00		\$800.00
			Appraisal Fee to Chris Niedbalski		\$400.00
			Credit Report to Factual Data		\$118.85
			Flood certification to CBCInnovis		\$10.50
			Prepaid Interest (21.1438 per day from 4/13/2022 to 5/1/2022)		\$380.59
			Homeowner's Insurance Premium (12 mo.) to Progressive		\$787.00
			Homeowner's Insurance \$65.59 per month for 3 mo.		\$196.77
			Property Taxes \$146.04 per month for 2 mo.		\$292.08
			Aggregate Adjustment		-\$65.59
			Origination Fee to Notre Dame Federal Credit Union		\$882.00
			Title Charges		
			Title - Lender's Title Insurance to Meridian Title Corporation		\$50.00
	\$523.00		Title - Owner's Title Insurance to Meridian Title Corporation		
			Title - ALTA ENDORSEMENT 08.1-06 (Environmental Protection Lien) (ADD FEE) (LOAN) Paragr Endorsement(s) to Meridian Title Corporation		\$25.00
			Title - ALTA ENDORSEMENT 09-06 (Restrictions, Encroachments, Minerals) (ADD FEE) (LOAN) Endorsement(s) to Meridian Title Corporation		\$25.00
	\$200.00		Title - Processing Fee to Meridian Title Corporation		
			Title - Closing Fee to Meridian Title Corporation		\$470.00
			Title - Settlement Services Fee to Meridian Title Corporation		\$50.00
			Title - Title Production - Loan to Meridian Title Corporation		\$75.00
	\$400.00		Title - Title Production - Owners to Meridian Title Corporation		
			Title - E-Recording Fee to Simplifile		\$8.00
	\$5.00		Title - TIEFF to American Digital Title Insurance Company		\$5.00
	\$25.00		Title - CPL - Seller to American Digital Title Insurance Company		
			Title - CPL - Lender to American Digital Title Insurance Company		\$25.00
			Title - Buyer/Borrower CPL to American Digital Title Insurance Company		\$25.00
	\$75.00		Title - Deed Preparation - Andrew R. Drake to Meridian Title Corporation		

	\$9.95		Title - CertifID Wire Verification Fee to CertifID			
	\$50.00		Title - Wire Fee to Meridian Title Corporation			
	\$25.00		Title - Express Mail Fee to Meridian Title Corporation			
			Government Recording and Transfer Charges			
			Recording fees: Deed \$25.00		\$25.00	
			Mortgage \$55.00		\$55.00	
			Sales Disclosure Filing Fee to County Auditor \$30.00		\$30.00	
			Additional Settlement Charges			
	\$50.00		County RE Certification Fee to St. Joseph County Health Department			
	\$35.00		Release Tracking to reQuire			
	\$876.21		2021/2022 Spring Property Taxes to Meridian Title Corporation as Escrow Agent - TAXES			
Seller				Buyer		
P.O.C.	Debit	Credit		P.O.C.	Debit	Credit
\$0.00	\$137,538.64	\$199,000.00	Subtotals	\$0.00	\$203,920.20	\$180,928.91
			Due From Buyer			\$22,991.29
	\$61,461.36		Due To Seller			
\$0.00	\$199,000.00	\$199,000.00	Totals	\$0.00	\$203,920.20	\$203,920.20

Acknowledgement

We/I have carefully reviewed the ALTA Settlement Statement and find it to be a true and accurate statement of all receipts and disbursements made on my account or by me in this transaction and further certify that I have received a copy of the ALTA Settlement Statement. We/I authorize Meridian Title Corporation to cause the funds to be disbursed in accordance with this statement.

BUYER(S)



RYAN LUTZ



SARA LUTZ

SELLER(S)

Brian A. Page by
Carmen Erickson

BRIAN A. PAGE

Maryah M. Boozer

MARYAH M. BOOZER

by Carmen Erickson

SETTLEMENT COORDINATOR



SELLER(S) CERTIFICATION OF CONDITION OF PROPERTY

Property Address: 3627 Cooper Court, South Bend, IN 46614
Property County: Saint Joseph

The undersigned Seller(s) certify to the Purchaser at settlement that the condition of the property is substantially the same as it was when the disclosure form was provided.

Signed this 7 day of April, 2022.

SELLER(S):



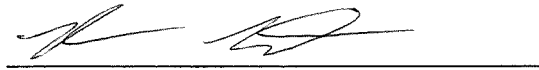
Brian A. Page



Maryah M. Booser

The undersigned Buyer(s) acknowledge receipt of the Seller(s) certification at settlement.

BUYER(S):



Ryan Lutz



Sara Lutz

NOTE: This is a certification pursuant to IC 32-21-5-12. For information regarding its legal consequences, please consult a licensed legal or real estate professional.

ACCEPTANCE AND WAIVER OF INSPECTION REPORTS

Property Address: 3627 Cooper Court, South Bend, IN 46614
Property County: Saint Joseph

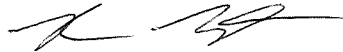
We, the undersigned, being the Purchasers of the above referenced real estate have waived and/or reviewed the inspection reports requested by the Contract to Purchase, our lender or the undersigned.

I(We) have examined the repairs made, if any, and have physically inspected the real estate and do hereby accept the property in its present "as is" condition. Further, we do consider the contingencies of the Contract to Purchase to be fully satisfied and waived by our signatures below.

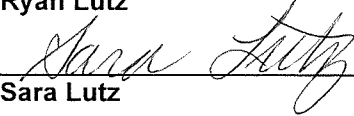
Finally, we acknowledge we are purchasing the property in its "as is" condition and do hereby release the Sellers and real estate brokers from any liability for future expenses for damage or repairs except to the extent that said Sellers or brokers fraudulently misrepresented a material fact.

Dated this 13th day of April, 2022.

PURCHASER(S)



Ryan Lutz



Sara Lutz

TAX MEMORANDUM

Property Address: 3627 Cooper Court, South Bend, IN 46614
Property County: Saint Joseph

The undersigned purchaser understands that they are receiving credit at closing for the payment of property taxes from January 1, 2021 to April 14, 2022.

It will be purchaser's responsibility to pay or have paid through an escrow with its lender the taxes on the above property even though purchaser may not receive a tax bill beginning with the installment due and payable May 10, 2022.

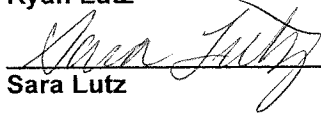
Purchaser further understands that the credit they have received is based on the tax information available at the time of closing and may not be the exact amount that is billed.

Dated this 14th day of April, 2022.

PURCHASER(S)



Ryan Lutz



Sara Lutz

SELLER(S)



Brian A. Page



Maryah M. Boozer

**CERTIFICATION OF ASSESSMENTS AND EXEMPTIONS FOR
CALCULATION OF TAX PRORATION AND HOLD HARMLESS**

Property Address: 3627 Cooper Court, South Bend, IN 46614
Property County: Saint Joseph

- A. The Purchase Agreement provides for proration of taxes at closing between the Buyer and Seller.
- B. The proration applies to either:
1. That part of this calendar years taxes from January 1 to date of closing payable next year (for closing held after last year payable this year tax bills are computable) or
 2. All of last calendar years taxes payable this year and that part of this calendar year taxes from January 1 to date of closing payable next year (for closing held before last year payable this year tax bills are computable)
- C. In calculating the tax proration, Meridian Title Corporation has used the most current, certified, tax rate.
- D. **The calculation made by Meridian Title Corporation does not factor in legislation capping tax amounts that may be imposed by the "circuit breaker", any possible refunds that may be made through an additional homestead credit or rebate, or any ongoing increase in assessed values as a result of trending.**
- E. The land and improvement assessments and the exemptions upon which the tax prorations were calculated are:

Key Number	018-7210-7783
State ID Number	71-09-19-479-010.000-026
Assessed Values for 2021/2022:	
Land	\$32,700.00
Improvements	\$110,200.00
Exemption (Mortgage)	\$0.00
Exemption (Homeowners)	\$45,000.00
Exemption (Homestead Supplemental)	\$33,845.00
Net Valuations	\$64,055.00

That the buyer and seller certify that there have been no changes (new construction, major renovation, or demolition) to the improvements, which would cause a change in the assessed valuation.

That the buyers and sellers have reviewed the assessments and exemptions in paragraph "E" and agree that these assessments and exemptions should be used in the computation of the tax proration.

- F. The sellers certify:
1. That they qualify for each of the above exemptions shown above, and;
 2. That they have not transferred or terminated any of the above exemptions, and;
 3. That they have not or will not terminate any exemptions or transfer any exemptions to another property after closing which would affect the exemptions applied toward the assessed valuation of the subject property and used to calculate any tax proration at closing.
 4. That they have not received notification of Homestead Deduction in Error and Back Tax Notification or Demand Notice.

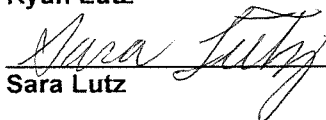
The buyer and seller acknowledge that the tax proration at closing, unless agreed otherwise, is FINAL except where there may have been mathematical miscalculation or where the certification by the seller as to exemptions or assessments is incorrect. In such cases the parties shall each have the right to seek recourse against the party who may have unjustly benefited from the miscalculation or incorrect use of the exemption(s) in calculating the tax proration.

The buyers and sellers further acknowledge that the proration calculation is based upon the information set forth herein and that neither Meridian Title Corporation nor the parties respective agents and/or broker, nor the underwriter issuing the title policies, are guaranteeing that the assessments or exemptions used to calculate the tax proration will be used to determine the final tax bill by the taxing authority. The parties further agree to hold Meridian Title Corporation and any underwriter issuing the title policies harmless from any and all claims, demands, or causes of action in any way related to the use of the amounts stated above for purposes of calculating the settlement statement in closing the transaction associated herewith.

BUYER(S)



Ryan Lutz



Sara Lutz

SELLER(S)



Brian A. Page



Maryah M. Boozer

ST. JOSEPH COUNTY WELL WATER AND SEPTIC SYSTEM CERTIFICATION ACKNOWLEDGEMENT

Property Address: 3627 Cooper Court, South Bend, IN 46614
Property County: Saint Joseph

The undersigned purchaser(s) and seller(s) acknowledge that an ordinance exists which requires, when applicable, an analysis of the well water and/or inspection of the septic system and certification by the County Health Department for the above referenced property which is located within St. Joseph County, Indiana. The undersigned further agree to the following:

☒ Applicable inspections and county certification have been completed and parties accept the results.

☐ Applicable inspections and county certification have not been completed; however the undersigned wish to close this sale transaction at this time. The undersigned both jointly and severally, further accept all responsibility and hold harmless any Realtors, lender, closing agent and title company from liability which may result from closing this transaction without completion of said inspections and certifications.

AGREED this 14th day of April, 2022.

PURCHASER(S)

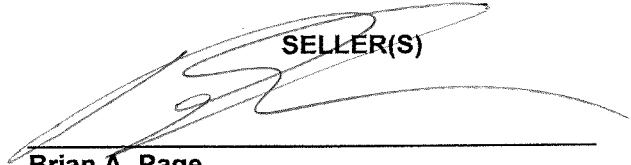


Ryan Lutz

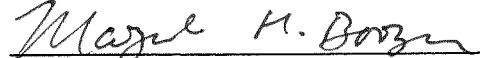


Sara Lutz

SELLER(S)



Brian A. Page



Maryah M. Boozer

**LIMITED POWER OF ATTORNEY FOR PREPARATION, COMPLETION
AND SIGNATURE OF THE INDIANA SALES DISCLOSURE FORM**

The undersigned Buyer(s) and Seller(s) do hereby make, constitute and appoint Meridian Title Corporation or its designated agent to be my/our true and lawful attorney, for me/us and in my/our name, place and stead to do any and all of the following:

1. To prepare, complete and, if necessary, sign the Indiana Sales Disclosure Form for the property located at:
3627 Cooper Court, South Bend, IN 46614

This power shall not be affected by my/our later disability or incompetence.

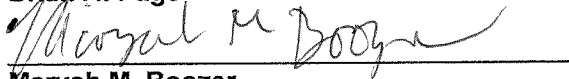
I/We give and grant to my/our said Attorney-in-Fact full power and authority to do and perform all and every act and thing requisite or proper to be done in the exercise of the rights and powers herein granted, as fully, to all intents and purposes, as I/we might or could do if personally present, with full power and substitution and revocation and with full authority to deal with the property as authorized above hereby ratifying and confirming all that my/our said Attorney-in-Fact, or his/her substitute, or substitutes, lawfully do or cause to be done by virtue of the authority granted herein.

Signed this 7 day of April, 2022

SELLER(S)



Brian A. Page



Maryah M. Boozer

State of Maryland, County of Anne Arundel ss:

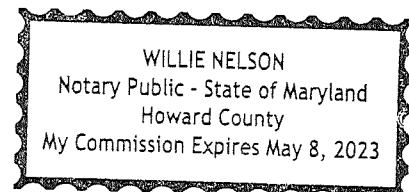
Before me, the undersigned, a Notary Public in and for said County and State, personally appeared the within named **Brian A. Page and Maryah M. Boozer**, who acknowledged the execution of the foregoing power of attorney to be a voluntary act and deed for the uses and purposes therein set forth.

Sworn to and subscribed before me this 7 day of April, 2022

My Commission Expires: 05/08/2023 Willie Nelson
Signature of Notary Public

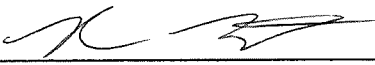
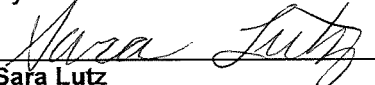
Willie Nelson
Printed Name of Notary Public

Anne Arundel, Maryland
Notary Public County and State of Residence



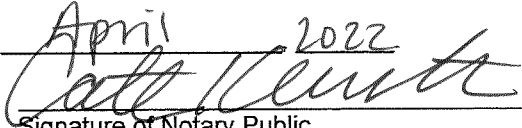
Signed this 13 day of April, 2022.

BUYER(S)


Ryan Lutz

Sara Lutz

State of Indiana, County of St. Joseph ss:

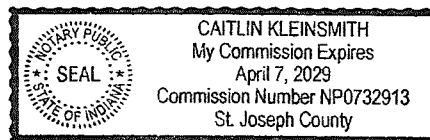
Before me, the undersigned, a Notary Public in and for said County and State, personally appeared the within named **Ryan Lutz and Sara Lutz**, who acknowledged the execution of the foregoing power of attorney to be a voluntary act and deed for the uses and purposes therein set forth.

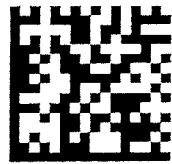
Sworn to and subscribed before me this 13 day of April, 2022
My Commission Expires: _____

Signature of Notary Public

Printed Name of Notary Public

Notary Public County and State of Residence

This instrument was prepared by:
Debra A. Guy, Attorney-at-Law, IN #24473-71 MI #P69602
202 S. Michigan Street, Ste. 300, South Bend, IN 46601





2364575-1881-
D

VENDOR(S) STATEMENT

Property Address: 3627 Cooper Court, South Bend, IN 46614

Property County: Saint Joseph

The undersigned hereby certifies with respect to the real estate and fixtures described in the below referenced commitment for title insurance that to the best of their knowledge and belief:

1. That all of the materials used and labor furnished in connection with any improvements on the Real Estate within the last sixty (60) days have been paid or are to be paid at closing. Further, that there are no unpaid charges for materials, labor, or Property Owners Association dues or assessments that may or could cause a lien to be filed against the real estate.
2. That no security agreements, financing statements or chattel mortgages have been given with respect to any fixtures on the real estate, including, but not limited to: water softener, security system or satellite dish. Furthermore, Vendor has not executed, or permitted anyone on Vendor's behalf to execute, any conveyance, mortgage, easement agreement, or encumbrance of or upon the Real Estate.
3. Vendor has made no contract to sell all or a part of the Real Estate to any person other than the Purchaser. That there are no unrecorded leases or options and that the real estate is in the exclusive possession of the undersigned or will be after closing subject to the terms of the Contract to Purchase and that no other party has a right or claim to possession.
4. The undersigned has no knowledge and is not aware of any existing mineral rights reserved for others and has not received any payment from third parties as it relates to leases for minerals.
5. If the improvement located on the real estate is a Manufactured Home or Mobile Home, the affiant states that it is affixed to the real estate.
6. That there are no judgments, court orders, pending bankruptcies, or marital settlement agreements, except as evidenced on the referenced title commitment, in which the undersigned is a defendant or petitioner.
7. That the undersigned is at least 18 years of age and a U.S Citizen.
8. To the best knowledge of Vendor, the improvements upon the Real Estate are all located entirely within the bounds of the Real Estate, and there are no encroachments thereon. There are no existing violations of zoning ordinances or other restrictions applicable to the Real Estate known to Vendor.
9. If applicable, that all municipal services and public or private utility charges such as sewer, water or waste disposal are paid current up to the date of the closing except for the following:
 - a. _____
 - b. _____
10. If after a file has closed the Escrow Provider determines that there is a shortage of \$1.00 or less owing to the Escrow Provider by the parties or if there is a surplus of funds of \$1.00 or less owing to the parties, the Parties agree that Escrow Provider shall retain any surplus and to fund any shortage as referenced above. Parties agree that the time and expense to either remit de minimis funds to the Escrow Provider or to receive de minimis funds far exceeds the amount to merit a formal refund or formal payment.

I/WE HEREBY ASK THAT MY/OUR LINE OF CREDIT (EQUITY LOAN), IF APPLICABLE BE CLOSED. A CHECK OR WIRE TRANSFER FOR PAYMENT IN FULL OF THE ACCOUNT AND A COPY OF THIS REQUEST, IF NECESSARY, SHOULD BE SUFFICIENT EVIDENCE OF INTENT TO CLOSE THE ACCOUNT, HOWEVER, IF ADDITIONAL DOCUMENTATION IS NECESSARY, I/WE AGREE TO FULLY COMPLY WITH ANY AND ALL REQUIREMENTS OF MY/OUR LENDER TO CLOSE THE ACCOUNT AND HAVE THE MORTGAGE RELEASED OF RECORD. I/WE HAVE TENDERED TO MERIDIAN TITLE CORPORATION ALL DEBIT/CREDIT CARDS ASSOCIATED WITH THE LINE OF CREDIT ACCOUNT(S), IF DEBIT/CREDIT CARDS WERE ISSUED.

The Undersigned herein make these statements to induce Meridian Title Corporation to rely on same for the purpose of issuing its title policies and to induce the lending institution to rely on same for the purpose of accepting a mortgage on the real estate and fixtures.

VENDOR(S)



Brian A. Page



Maryah M. Boozer

State of Maryland, County of Anne Arundel ss:

Sworn to and subscribed before me this 7 day of April, 2022

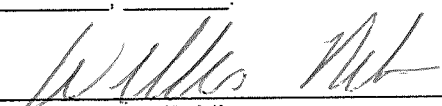
05/08/2023

My Commission Expires:

Commission No.

Anne Arundel Maryland

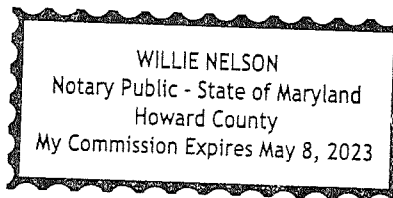
Notary Public County and State of Residence



Signature of Notary Public

Willie Nelson

Printed Name of Notary



TAX ID NUMBER(S)
018-7210-7783 71-09-19-479-010.000-026

WARRANTY DEED

THIS INDENTURE WITNESSETH THAT

Brian A. Page and Maryah M. Boozer, as Tenants by the Entirety

CONVEY(S) AND WARRANT(S) TO

Ryan Lutz and Sara Lutz, Husband and Wife, for Ten Dollars and other valuable consideration the receipt whereof is hereby acknowledged, the following described REAL ESTATE in Saint Joseph County, in the State of Indiana, to wit:

SEE ATTACHED EXHIBIT "A"

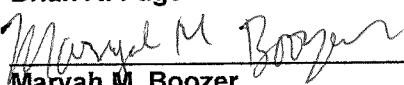
Subject to Real Estate taxes now due and payable and thereafter.

Subject to covenants, restrictions and easements of record.

IN WITNESS WHEREOF, the Grantor has executed this Deed this 7 day of April, 2022.



Brian A. Page



Maryah M. Boozer

State of Maryland, County of Anne Arundel ss:

Before me, the undersigned, a Notary Public in and for said County and State, personally appeared the within named **Brian A. Page and Maryah M. Boozer** who acknowledged the execution of the foregoing Deed and who, having been duly sworn, stated that the representations therein contained are true.

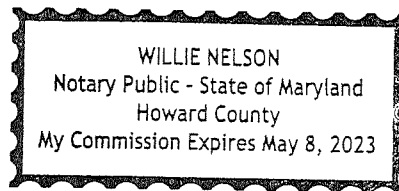
WITNESS, my hand and Seal this 7 day of April, 2022

05/08/2023
My Commission Expires:

Willie Nelson
Signature of Notary Public

Willie Nelson
Printed Name of Notary

Commission No.
Anne Arundel, Maryland
Notary Public County and State of Residence



This instrument was prepared by:
Andrew R. Drake, Attorney-at-Law
11711 N. Pennsylvania St., Suite 110, Carmel, IN 46032

Property Address:
3627 Cooper Court
South Bend, IN 46614

Grantee's Address and Mail Tax Statements To:

3627 Cooper Court
South Bend, IN 46614

I affirm, under the penalties for perjury, that I have taken reasonable care to redact each social security number in this document, unless required by law. Andrew R. Drake

EXHIBIT A

Lot Numbered Four Hundred Fifty-eight (458) as shown on the recorded plat of Twyckenham Hills, Section L, recorded October 20, 1959 in Plat Book 20, page T, in Saint Joseph County, Indiana.

COUNTY: 71-St. Joseph

SPRING INSTALLMENT REMITTANCE COUPON

PARCEL NUMBER 71-09-19-479-010.000-026	DUPLICATE NUMBER 96385	TAX YEAR 2021 Payable 2022	Late Payment Penalty: 5% penalty after May 10, 2022, if there is no delinquent amount: 10% penalty for previous delinquency or if payment is made after June 09, 2022
TAXING UNIT NAME South Bend - Portage	LEGAL DESCRIPTION Lot 458 Twyckenham Hills Sec L		



TOTAL AMOUNT DUE by May 10, 2022	\$876.21
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Page Brian A & Boozer Maryah M
3627 Cooper Ct
South Bend IN 46614

(574)235-9531
Pay Online at: www.lowtaxinfo.com | 877-690-3729 code: 2413
Remit Payment and Make Check Payable to:
St. Joseph County Treasurer
P.O. Box 4758
South Bend IN 46634-4758

0000096385 000000087621

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COUNTY: 71-St. Joseph

FALL INSTALLMENT REMITTANCE COUPON

PARCEL NUMBER 71-09-19-479-010.000-026	DUPLICATE NUMBER 96385	TAX YEAR 2021 Payable 2022	Late Payment Penalty: 5% penalty after November 10, 2022, if there is no delinquent amount: 10% penalty for previous delinquency or if payment is made after December 12, 2022
TAXING UNIT NAME South Bend - Portage	LEGAL DESCRIPTION Lot 458 Twyckenham Hills Sec L		



TOTAL AMOUNT DUE by November 10, 2022	\$876.21
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Page Brian A & Boozer Maryah M
3627 Cooper Ct
South Bend IN 46614

(574)235-9531
Pay Online at: www.lowtaxinfo.com | 877-690-3729 code: 2413
Remit Payment and Make Check Payable to:
St. Joseph County Treasurer
P.O. Box 4758
South Bend IN 46634-4758

0000096385 000000087621

Reprinted: 04/12/2022 12:44 PM LowTaxInfo.com

COUNTY: 71-St. Joseph

TAXPAYER'S COPY - KEEP FOR YOUR RECORDS

PARCEL NUMBER 71-09-19-479-010.000-026	DUPLICATE NUMBER 96385	TAX YEAR 2021 Payable 2022	DUE DATES
TAXING UNIT NAME South Bend - Portage	LEGAL DESCRIPTION Lot 458 Twyckenham Hills Sec L		SPRING - May 10, 2022 FALL - November 10, 2022

DATE OF STATEMENT: 04/12/2022

TOTAL DUE FOR 2021 PAY 2022: \$1,752.42

PROPERTY ADDRESS 3627 Cooper Ct, South Bend IN 46614		
PROPERTY TYPE Real	TOWNSHIP: Portage	
ACRES 0.0000	Total AV PTRC Rate 8.2562	LIT 1% Rate 4.4831

Page Brian A & Boozer Maryah M
3627 Cooper Ct
South Bend IN 46614

ITEMIZED CHARGES	SPRING TOTAL	FALL TOTAL
Tax	\$854.71	\$854.71
Delinquent Tax	\$0.00	\$0.00
Delinquent Penalty	\$0.00	\$0.00
Other Assessment (OA)	\$21.50	\$21.50
Delinquent OA Tax	\$0.00	\$0.00
Delinquent OA Penalty	\$0.00	\$0.00
Fees	\$0.00	\$0.00
Adjustments	\$0.00	\$0.00
Amount Due	\$876.21	\$876.21
Payment Received	\$0.00	\$0.00
Balance Due	\$876.21	\$876.21

Reprinted: 04/12/2022 12:44 PM LowTaxInfo.com

SPECIAL MESSAGE TO PROPERTY OWNER

Property taxes are constitutionally capped at 1% of property values for homesteads (owner-occupied), 2% for other residential property and farmland, and 3% for all other property. Please note that local government unit annual budget notices are now available online at: <https://budgetnotices.in.gov>. Additional information for how to read your current tax bill can be located online at: www.in.gov/dlgf/understanding-your-tax-bill/tax-bill-101.

TAXPAYER AND PROPERTY INFORMATION

<u>Taxpayer Name</u> Page Brian A & Boozer Marvah M 3627 Cooper Ct South Bend IN 46614	<u>Address</u> 3627 Cooper Ct South Bend IN 46614	<u>Date of Notice</u> April 12, 2022	<u>Parcel Number</u> 71-09-19-479-010.000-026	<u>Taxing District</u> 026 South Bend - Portage
		<u>Duplicate Number</u> 96385	<u>Tax ID Number</u> 018-7210-7783	
<u>Legal Description</u> Lot 458 Twyckenham Hills Sec L	<u>Billed Mortgage Company</u> Core Logic (62)			<u>Property Type</u> Real

Spring installment due on or before May 10, 2022 and Fall installment due on or before November 10, 2022.

TABLE 1: SUMMARY OF YOUR TAXES

ASSESSED VALUE AND TAX SUMMARY	2020 Pay 2021	2021 Pay 2022
1a. Gross assessed value of homestead property	\$126,300	\$141,700
1b. Gross assessed value of other residential property and farmland	\$0	\$0
1c. Gross assessed value of all other property, including personal property	\$1,200	\$1,200
2. Equals total gross assessed value of property	\$127,500	\$142,900
2a. Minus deductions (see Table 5 below)	(\$73,455)	(\$78,845)
3. Equals subtotal of net assessed value of property	\$54,045	\$64,055
3a. Multiplied by your local tax rate	5.9613	5.8190
4. Equals gross tax liability (see Table 3 below)	\$3,221.79	\$3,727.37
4a. Minus local property tax credits	(\$450.52)	(\$439.26)
4b. Minus savings due to property tax cap (see Table 2 and footnotes below)	(\$1,256.25)	(\$1,578.69)
4c. Minus savings due to over 65 circuit breaker credit	\$0.00	\$0.00
5. Total property tax liability (see remittance coupon for total amount due)	\$1,515.02	\$1,709.42

Please see Table 4 for a summary of other charges to this property.

TABLE 2: PROPERTY TAX CAP INFORMATION

Property tax cap (1%, 2%, or 3%, depending upon combination of property types) ¹	\$1,299.00	\$1,453.00
Upward adjustment due to voter-approved projects and charges (e.g., referendum) ²	\$216.02	\$256.42
Maximum tax that may be imposed under cap	\$1,515.02	\$1,709.42

TABLE 3: GROSS PROPERTY TAX DISTRIBUTION AMOUNTS APPLICABLE TO THIS PROPERTY

TAXING AUTHORITY	TAX RATE 2021	TAX RATE 2022	TAX AMOUNT 2021	TAX AMOUNT 2022	TAX DIFFERENCE 2021-2022	PERCENT DIFFERENCE
CITY OR TOWN	3.3483	3.2925	\$1,809.60	\$2,109.02	\$299.42	16.55%
COUNTY	0.6741	0.6574	\$364.32	\$421.10	\$56.78	15.59%
LIBRARY	0.3177	0.3013	\$171.70	\$193.00	\$21.30	12.41%
SCHOOL	1.4505	1.4148	\$783.92	\$906.25	\$122.33	15.60%
SPECIALS (2)	0.1558	0.1530	\$84.20	\$98.00	\$13.80	16.39%
TOWNSHIP	0.0149	0.0000	\$8.05	\$0.00	(\$8.05)	(100.00%)
TOTAL	5.9613	5.8190	\$3,221.79	\$3,727.37	\$505.58	15.69%

TABLE 4: OTHER CHARGES / ADJUSTMENTS TO THIS PROPERTY

LEVYING AUTHORITY	2021	2022	% Change
Hazardous Waste Fee	\$9.00	\$9.00	0.0%
Recycling Fee	\$34.00	\$34.00	0.0%
TOTAL ADJUSTMENTS	\$43.00	\$43.00	0.0%

TABLE 5: DEDUCTIONS APPLICABLE TO THIS PROPERTY ³

TYPE OF DEDUCTION	2021	2022
Std Hmstd Deduct	\$45,000	\$45,000
Supplemental	\$28,455	\$33,845
TOTAL DEDUCTIONS	\$73,455	\$78,845

- The property tax cap is calculated separately for each class of property owned by the taxpayer.
- Changes not subject to the property tax caps include property tax levies approved by voters through a referendum. When added to the base property tax cap amount for your property, this creates the effective tax cap. For more information, see the back of this document. Information regarding the referendums proposed during the most recent elections can be located online at: www.in.gov/dlgf/referendum-information.
- If any circumstances have changed that would make you ineligible for a deduction that you have been granted per Table 5 of this tax bill, you must notify the county auditor. If such a change in circumstances has occurred and you have not notified the county auditor, the deduction will be disallowed and you will be liable for taxes and penalties on the amount deducted.

NOTICE OF PROPERTY TAX ASSESSMENTS

Name and Address of Taxpayer – The owner and mailing address of the owner of record as of the date of this notice.

Date of Notice / Due Date – Date that the property tax bill was mailed and the date by which payment must be made in order to avoid late charges.

Property Number (State / Local) – State mandated property number of the taxable real estate and the local parcel number, if applicable.

Taxing District – The number assigned by the Department of Local Government Finance to the taxing district in which this property is located.

TABLE 1: SUMMARY OF YOUR TAXES

Tax Summary – The amounts involved with calculating your real estate property taxes.

Taxes 2020 Pay 2021 – The summary of calculations based on tax rates for taxes payable last year.

Taxes 2021 Pay 2022 – The summary of calculations based on this year's tax rates.

Tax Relief Credits – Credits are determined annually and are used to reduce property tax liabilities applicable to properties in this table.

- **Local Property Tax Credits** – Relief credit generated by the local income tax, which can be used to reduce property tax bills.
- **Over 65 Circuit Breaker Credit** – Credit for a calendar year if homestead qualifies and age, adjusted gross income, homestead assessed value, and other eligibility requirements are met. The credit caps the increase of the homestead property tax liability of credit recipient at two percent (2%).

TABLE 2: PROPERTY TAX CAP INFORMATION

Property Tax Cap – Property may not be taxed above caps prescribed by law, unless voters approve additional taxes. Those caps are 1% for homesteads, 2% for other residential property and farm land, and 3% for all other classes of property. When voters approve additional spending in a referendum, an **adjustment to the cap** is made to reflect the additional expense. This excess revenue is calculated as a separate value and added to the cap figure. This new value is considered your effective property tax cap or the **maximum that may be imposed under the cap**. Taxpayers should note that the circuit breaker cap amount is the combined cap amount for all classes of property applicable to a parcel.

TABLE 3: GROSS PROPERTY TAX DISTRIBUTION AMOUNTS APPLICABLE TO THIS PROPERTY

Taxing Authority – The name of the unit levying the taxes.

Tax Rate 2021 – The tax rate per \$100 of assessed value for this property allocated to each taxing authority for 2021.

Tax Rate 2022 – The tax rate per \$100 of assessed value for this property allocated to each taxing authority for the current year.

Tax Amount 2021 – The amount of taxes for this property allocated to each taxing authority for 2021.

Tax Amount 2022 – The amount of taxes for this property allocated to each taxing authority for the current year.

Tax Difference 2021-2022 – The difference in dollars between current taxes and prior year taxes for each taxing authority.

Percent Difference – The percent change between last year's tax amount and this year's tax amount for each taxing authority.

TABLE 4: OTHER CHARGES / ADJUSTMENTS TO THIS PROPERTY

Levying Authority – The type of additional charge added to your property tax bill such as sewer, ditch, or other special assessment.

Amount 2021 – The total amount of other charges added to your tax bill in 2021.

Amount 2022 – The total amount of other charges added to your tax bill for the current year.

TABLE 5: DEDUCTIONS APPLICABLE TO THIS PROPERTY

Type of Deduction – No deduction is automatic. All must be applied for with the appropriate office by the applicable due date.

Various restrictions apply. For more information, call the county auditor at (574) 235-9529 or visit www.sjcindiana.com/176/Auditor

Deductions documented in this bill can include, but are not limited to, the following:

- **Abatement** – Deduction for eligible properties where taxes have been lowered or eliminated, generally through the action of the city council or county council. (IC 6-1.1-12.1)
- **Blind/Disabled** – Deduction for the blind or disabled. Must supply proof from a doctor or Social Security awards letter. (IC 6-1.1-12-11, 12)
- **Enterprise Zone** – Deduction for eligible properties located within a designated enterprise zone. (IC 6-1.1-12-40)
- **Geothermal** – Deduction for eligible properties using geothermal devices. (IC 6-1.1-12-34, 35.5)
- **Homestead Standard Deduction** – Deduction for owner-occupied primary residence. (IC 6-1.1-12-37)
- **Supplemental Standard Deduction** – Additional deduction for homesteads after the application of the Homestead Standard Deduction. (IC 6-1.1-12-37.5)
- **Mortgage** – Deduction for mortgaged property for eligible persons. (IC 6-1.1-12-1, 2)
- **Nonprofit** – Exemption for eligible properties. (IC 6-1.1-10)
- **Over 65** – Deduction for individuals over 65 years of age; subject to income, residency, and assessed value limits. (IC 6-1.1-12-9, 10.1)
- **Veterans** – Deduction for disabled veterans. Must supply proof of service, honorable discharge, and disability. (IC 6-1.1-12-13, 14, 15)

Amount 2021 – The amount deducted from your bill in 2021 for each benefit.

Amount 2022 – The amount deducted from your bill this year for each benefit.

Homestead Credits

St. Joseph County provides local property tax credits for certain taxpayers pursuant to IC 6-3.6-5 and/or IC 6-1.1-20.4. Taxpayers receiving a local property tax credit will see the credit amount in Box 4A on the Form TS-1 A.

Information on the valuation of your property and a copy of the property record card can be obtained from your assessor at (574) 235-9523 or www.sjcindiana.com/173/Assessor

To obtain a review of an assessment, the taxpayer must file an appeal via a Form 130. If the Form 11 is mailed before May 1 of the assessment year, the filing deadline for real property is June 15 of that year. If the Form 11 is mailed after April 30 of the assessment year, the filing deadline for real property is June 15 in the year that the tax statements are mailed. For personal property assessments, the filing deadline is not later than forty-five (45) days after the date of the required notice (Form 11).

NOTE: Failure to file a timely Form 130 can be grounds for dismissal of this appeal. The assessing official who receives an appeal filed by a taxpayer must:

(1) immediately forward the notice to the county board; and (2) schedule a preliminary informal meeting with the taxpayer in order to resolve the appeal.

For further instructions on filing an appeal or correction of error, contact your assessor at (574) 235-9523

Please note that the appeal requires relevant evidence of the true tax value of the property as of the assessment date (January 1, 2022, for mobile homes assessed under IC 6-1.1-7 and January 1, 2021, for real property).

American Digital Title Insurance Company

SCHEDULE A

Transaction Identification Data for reference only:

Issuing Agent: MERIDIAN TITLE CORPORATION
ALTA® Universal ID: 0001118
Commitment No.: 22-10436
Property Address: 3627 Cooper Court, South Bend, IN 46614
Revision No.: Amendment No. 2

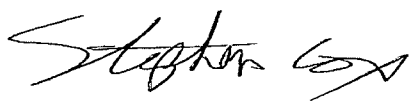
Issuing Office: Mishawaka
Loan ID No.: 2203024008
Issuing Office File No.: 22-10436

SCHEDULE A

1. Commitment Date: March 8, 2022 at 8:00 AM
2. Policy to be issued:
 - (a) ☒ ALTA® Homeowner's Policy 02/03/10
Proposed Insured: Ryan Lutz and Sara Lutz, Husband and Wife
Proposed Policy Amount: \$199,000.00
 - (b) ☒ ALTA® Loan Policy of Title Insurance (6-17-06)
Proposed Insured: Notre Dame Federal Credit Union, its successors and/or assigns as defined in the Conditions of this policy
Proposed Policy Amount: \$176,400.00
3. The estate or interest in the Land described or referred to in this Commitment is Fee Simple.
4. Title to the Fee Simple estate or interest in the Land is at the Commitment Date vested in:

Brian A. Page and Maryah M. Boozer, as Tenants by the Entirety
5. The Land is described as follows: SEE ATTACHED EXHIBIT "A"

MERIDIAN TITLE CORPORATION

By: 
Authorized Signatory

This page is only a part of a 2016 ALTA® Commitment for Title Insurance issued by American Digital Title Insurance Company. This Commitment is not valid without the Notice; the Commitment to Issue Policy; the Commitment Conditions; Schedule A; Schedule B, Part I—Requirements; Schedule B, Part II—Exceptions; and a counter-signature by the Company or its issuing agent that may be in electronic form.

EXHIBIT "A"

Lot Numbered Four Hundred Fifty-eight (458) as shown on the recorded plat of Twyckenham Hills, Section L, recorded October 20, 1959 in Plat Book 20, page T, in Saint Joseph County, Indiana.

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American Digital Title Insurance Company

SCHEDULE B, PART I

Commitment No.: 22-10436

REQUIREMENTS

All of the following Requirements must be met:

1. The Proposed Insured must notify the Company in writing of the name of any party not referred to in this Commitment who will obtain an interest in the Land or who will make a loan on the Land. The Company may then make additional Requirements or Exceptions.
2. Pay the agreed amount for the estate or interest to be insured.
3. Pay the premiums, fees, and charges for the Policy to the Company.
4. Documents satisfactory to the Company that convey the Title or create the Mortgage to be insured, or both, must be properly authorized, executed, delivered, and recorded in the Public Records.
5. You must file a Disclosure of Sales Information forms prescribed by the State Board of Tax Commissioners pursuant to I.C. 6-1.1-5.5. The disclosure form must be filed with the county auditor's office prior to recording.
6. Properly executed and fully completed Certificate of Non-Foreign Status of Transferor.

Note: Seller Proceeds cannot be disbursed until this form is completed in its entirety.

7. Warranty Deed suitable for recording.
8. Properly executed mortgage securing the loan.
9. Payment and Release of a Mortgage in the amount of \$106,250.00 from Brian A. Page and Maryah M. Boozer, Tenancy by Entirety to Notre Dame Federal Credit Union, dated June 30, 2017 and recorded July 12, 2017 in Instrument No. 1718229 in the Office of the Recorder of Saint Joseph County, Indiana, including subsequent assignments, extensions and/or modifications, if any.
10. Payment and release of a Mortgage from Brian A. Page and Maryah M. Boozer, as Tenants by the Entirety to Notre Dame Federal Credit Union dated September 23, 2019 and recorded September 27, 2019, Instrument No. 2019-24855 in the Office of the Recorder of Saint Joseph County, Indiana, securing a note in the original principal sum of \$23,489.00, and other obligations described therein.

IMPORTANT: The above mortgage secures an equity line of credit and/or revolving loan. The Company requires a satisfactory written statement from the existing lender confirming: (a) the payoff amount, (b) that the line of credit has been closed, and no further draws/advances will be permitted and/or the right to future advances has been terminated, and (c) agreeing to deliver a full satisfaction/release upon payment of the outstanding balance.

NOTE: We have made a special judgment search for the ten years last past against the proposed purchaser and find no judgment liens of record.

NOTE: Unless otherwise directed by the proposed lender, the Loan Policy to be issued will contain an ALTA 8.1 Endorsement or state specific equivalent endorsement providing environmental protection and an ALTA 9 (Comprehensive) Endorsement. Endorsement fees, based on Underwriter, will be applied.

11. Vendor's and/or Mortgagor's Affidavits to be executed at the closing.
12. You should contact the local municipality to obtain information regarding unpaid sewer and/or municipal assessments that are not a recorded lien against the land. We are not responsible for collecting at closing such unpaid assessments unless otherwise instructed.

Note: This commitment is not effective until you provide us with the name of the Proposed Insured(s) and the Policy amount(s). We limit our liability to \$250.00 until you provide us with the Policy Amount(s).

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Note: In accordance with applicable underwriter guidelines, there may be a title premium re-issue discount for this transaction. Please contact our office prior to your closing for more details.

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American Digital Title Insurance Company

SCHEDULE B, PART II

Commitment No.: 22-10436

EXCEPTIONS

THIS COMMITMENT DOES NOT REPUBLISH ANY COVENANT, CONDITION, RESTRICTION, OR LIMITATION CONTAINED IN ANY DOCUMENT REFERRED TO IN THIS COMMITMENT TO THE EXTENT THAT THE SPECIFIC COVENANT, CONDITION, RESTRICTION, OR LIMITATION VIOLATES STATE OR FEDERAL LAW BASED ON RACE, COLOR, RELIGION, SEX, SEXUAL ORIENTATION, GENDER IDENTITY, HANDICAP, FAMILIAL STATUS, OR NATIONAL ORIGIN.

The Policy will not insure against loss or damage resulting from the terms and provisions of any lease or easement identified in Schedule A, and will include the following Exceptions unless cleared to the satisfaction of the Company:

1. Any defect, lien, encumbrance, adverse claim, or other matter that appears for the first time in the Public Records or is created, attaches, or is disclosed between the Commitment Date and the date on which all of the Schedule B, Part I—Requirements are met.
2. Any discrepancies or conflicts in boundary lines, any shortages in area, or any encroachment or overlapping in improvements.
3. Any facts, rights, interests or claims which are not shown by the public record but which could be ascertained by an accurate survey of the land or by making inquiry of persons in possession of the land.
4. Easements, liens or encumbrances or claims thereof, which are not shown by the public record.
5. Any lien, or right to a lien for services, labor or material imposed by law and not shown by the public record.
6. Taxes or special assessments which are not shown as existing liens by the public record.
7. Taxes for the year 2022 Payable in 2023 are a lien not yet due and payable.
Taxes for the year 2021 Payable in 2022 are as follows:

Key Number	018-7210-7783
State ID Number	71-09-19-479-010.000-026
Township	South Bend-Portage
1 st installment due May 10, 2022	\$854.71 - Unpaid
2 nd installment due November 10, 2022	\$854.71 - Unpaid

Assessed Values for 2021/2022:

Land	\$32,700.00
Improvements	\$110,200.00
Exemption (Mortgage)	\$0.00
Exemption (Homeowners)	\$45,000.00
Exemption (Homestead Supplemental)	\$33,845.00
Net Valuations	\$64,055.00

Recycling Fees:

1st Installment - \$17.00 - Unpaid
2nd Installment - \$17.00 - Unpaid

Hazardous Waste Fees:

1st installment \$4.50 - Unpaid
2nd installment \$4.50 - Unpaid

NOTE FOR INFORMATION: Tax information supra is limited to the LAST BILLED information reflected in the computer input in the Treasurer's office and does not necessarily reflect the most current information as to applicable penalties, deductions, exemptions, assessments and payments. Also, it does not reflect possible additional taxes and civil penalties as a result of a determination by County officials that a deduction was improperly granted. A check with the Treasurer's or Auditor's Office should be made to determine the exact status and amount of taxes due, if any.

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8. Covenants, conditions, restrictions, setback lines, utility easements and any amendments thereto against the property described in Schedule A, if any. A violation of the covenants, conditions and restrictions will not result in forfeiture or reversion of the title. We delete any covenant, condition or restriction indicating a preference, limitation or discrimination based on race, color, religion, sex, handicap, familial status, or national origin to the extent such covenants, conditions, or restrictions violate 42 USC 3604(c).
9. Special assessments/sewer usage charges, if any, levied by the City/Town of South Bend.
10. Any and all recorded building lines, easements, rights of way, restrictions, legal ditches and drains and all rights therein.
11. Minerals or mineral rights or any other subsurface substances (including, without limitation, oil, gas and coal), and all rights incident thereto, now or previously leased, granted, excepted or reserved.

NOTE FOR INFORMATIONAL PURPOSES ONLY:

The following deed(s) (if any) affecting said land were recorded within Twenty-four (24) months of the date of this product. If no deed(s) were found, the last deed of record is shown below:

Grantor: Nancy Moreland Personal Representative of the Supervised Estate of Dale E. McColley
Grantee: Brian A. Page and Maryah M. Boozer, as Tenants by the Entirety
Recorded: July 12, 2017
Instrument No.: 1718228

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American Digital Title Insurance Company

COMMITMENT FOR TITLE INSURANCE

Issued By

AMERICAN DIGITAL TITLE INSURANCE COMPANY

NOTICE

IMPORTANT—READ CAREFULLY: THIS COMMITMENT IS AN OFFER TO ISSUE ONE OR MORE TITLE INSURANCE POLICIES. ALL CLAIMS OR REMEDIES SOUGHT AGAINST THE COMPANY INVOLVING THE CONTENT OF THIS COMMITMENT OR THE POLICY MUST BE BASED SOLELY IN CONTRACT.

THIS COMMITMENT IS NOT AN ABSTRACT OF TITLE, REPORT OF THE CONDITION OF TITLE, LEGAL OPINION, OPINION OF TITLE, OR OTHER REPRESENTATION OF THE STATUS OF TITLE. THE PROCEDURES USED BY THE COMPANY TO DETERMINE INSURABILITY OF THE TITLE, INCLUDING ANY SEARCH AND EXAMINATION, ARE PROPRIETARY TO THE COMPANY, WERE PERFORMED SOLELY FOR THE BENEFIT OF THE COMPANY, AND CREATE NO EXTRACONTRACTUAL LIABILITY TO ANY PERSON, INCLUDING A PROPOSED INSURED.

THE COMPANY'S OBLIGATION UNDER THIS COMMITMENT IS TO ISSUE A POLICY TO A PROPOSED INSURED IDENTIFIED IN SCHEDULE A IN ACCORDANCE WITH THE TERMS AND PROVISIONS OF THIS COMMITMENT. THE COMPANY HAS NO LIABILITY OR OBLIGATION INVOLVING THE CONTENT OF THIS COMMITMENT TO ANY OTHER PERSON.

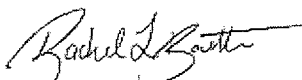
COMMITMENT TO ISSUE POLICY

Subject to the Notice; Schedule B, Part I—Requirements; Schedule B, Part II—Exceptions; and the Commitment Conditions, American Digital Title Insurance Company, a Colorado Corporation (the "Company"), commits to issue the Policy according to the terms and provisions of this Commitment. This Commitment is effective as of the Commitment Date shown in Schedule A for each Policy described in Schedule A, only when the Company has entered in Schedule A both the specified dollar amount as the Proposed Policy Amount and the name of the Proposed Insured.

If all of the Schedule B, Part I—Requirements have not been met within six months after the Commitment Date, this Commitment terminates and the Company's liability and obligation end.

AMERICAN DIGITAL TITLE INSURANCE COMPANY

By: 
James J. Dufficy, President

By: 
Rachel L. Barnette, Secretary

If this jacket was created electronically, it constitutes an original document.

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COMMITMENT CONDITIONS

1. DEFINITIONS

- (a) "Knowledge" or "Known": Actual or imputed knowledge, but not constructive notice imparted by the Public Records.
- (b) "Land": The land described in Schedule A and affixed improvements that by law constitute real property. The term "Land" does not include any property beyond the lines of the area described in Schedule A, nor any right, title, interest, estate, or easement in abutting streets, roads, avenues, alleys, lanes, ways, or waterways, but this does not modify or limit the extent that a right of access to and from the Land is to be insured by the Policy.
- (c) "Mortgage": A mortgage, deed of trust, or other security instrument, including one evidenced by electronic means authorized by law.
- (d) "Policy": Each contract of title insurance, in a form adopted by the American Land Title Association, issued or to be issued by the Company pursuant to this Commitment.
- (e) "Proposed Insured": Each person identified in Schedule A as the Proposed Insured of each Policy to be issued pursuant to this Commitment.
- (f) "Proposed Policy Amount": Each dollar amount specified in Schedule A as the Proposed Policy Amount of each Policy to be issued pursuant to this Commitment.
- (g) "Public Records": Records established under state statutes at the Commitment Date for the purpose of imparting constructive notice of matters relating to real property to purchasers for value and without Knowledge.
- (h) "Title": The estate or interest described in Schedule A.

2. If all of the Schedule B, Part I—Requirements have not been met within the time period specified in the Commitment to Issue Policy, this Commitment terminates and the Company's liability and obligation end.

3. The Company's liability and obligation is limited by and this Commitment is not valid without:

- (a) the Notice;
- (b) the Commitment to Issue Policy;
- (c) the Commitment Conditions;
- (d) Schedule A;
- (e) Schedule B, Part I—Requirements;
- (f) Schedule B, Part II—Exceptions; and
- (g) a counter-signature by the Company or its issuing agent that may be in electronic form.

4. COMPANY'S RIGHT TO AMEND

The Company may amend this Commitment at any time. If the Company amends this Commitment to add a defect, lien, encumbrance, adverse claim, or other matter recorded in the Public Records prior to the Commitment Date, any liability of the Company is limited by Commitment Condition 5. The Company shall not be liable for any other amendment to this Commitment.

5. LIMITATIONS OF LIABILITY

- (a) The Company's liability under Commitment Condition 4 is limited to the Proposed Insured's actual expense incurred in the interval between the Company's delivery to the Proposed Insured of the Commitment and the delivery of the amended Commitment, resulting from the Proposed Insured's good faith reliance to:
 - (i) comply with the Schedule B, Part I—Requirements;
 - (ii) eliminate, with the Company's written consent, any Schedule B, Part II—Exceptions; or
 - (iii) acquire the Title or create the Mortgage covered by this Commitment.
- (b) The Company shall not be liable under Commitment Condition 5(a) if the Proposed Insured requested the amendment or had Knowledge of the matter and did not notify the Company about it in writing.
- (c) The Company will only have liability under Commitment Condition 4 if the Proposed Insured would not have incurred the expense had the Commitment included the added matter when the Commitment was first delivered to the Proposed Insured.
- (d) The Company's liability shall not exceed the lesser of the Proposed Insured's actual expense incurred in good faith and described in Commitment Conditions 5(a)(i) through 5(a)(iii) or the Proposed Policy Amount.
- (e) The Company shall not be liable for the content of the Transaction Identification Data, if any.
- (f) In no event shall the Company be obligated to issue the Policy referred to in this Commitment unless all of the Schedule B, Part I—Requirements have been met to the satisfaction of the Company.
- (g) In any event, the Company's liability is limited by the terms and provisions of the Policy.

This page is only a part of a 2016 ALTA® Commitment for Title Insurance issued by American Digital Title Insurance Company. This Commitment is not valid without the Notice; the Commitment to Issue Policy; the Commitment Conditions; Schedule A; Schedule B, Part I—Requirements; Schedule B, Part II—Exceptions; and a counter-signature by the Company or its issuing agent that may be in electronic form.

6. LIABILITY OF THE COMPANY MUST BE BASED ON THIS COMMITMENT

- (a) Only a Proposed Insured identified in Schedule A, and no other person, may make a claim under this Commitment.
- (b) Any claim must be based in contract and must be restricted solely to the terms and provisions of this Commitment.
- (c) Until the Policy is issued, this Commitment, as last revised, is the exclusive and entire agreement between the parties with respect to the subject matter of this Commitment and supersedes all prior commitment negotiations, representations, and proposals of any kind, whether written or oral, express or implied, relating to the subject matter of this Commitment.
- (d) The deletion or modification of any Schedule B, Part II—Exception does not constitute an agreement or obligation to provide coverage beyond the terms and provisions of this Commitment or the Policy.
- (e) Any amendment or endorsement to this Commitment must be in writing and authenticated by a person authorized by the Company.
- (f) When the Policy is issued, all liability and obligation under this Commitment will end and the Company's only liability will be under the Policy.

7. IF THIS COMMITMENT HAS BEEN ISSUED BY AN ISSUING AGENT

The issuing agent is the Company's agent only for the limited purpose of issuing title insurance commitments and policies. The issuing agent is not the Company's agent for the purpose of providing closing or settlement services.

8. PRO-FORMA POLICY

The Company may provide, at the request of a Proposed Insured, a pro-forma policy illustrating the coverage that the Company may provide. A pro-forma policy neither reflects the status of Title at the time that the pro-forma policy is delivered to a Proposed Insured, nor is it a commitment to insure.

9. ARBITRATION

The Policy contains an arbitration clause. All arbitrable matters when the Proposed Policy Amount is \$2,000,000 or less shall be arbitrated at the option of either the Company or the Proposed Insured as the exclusive remedy of the parties. A Proposed Insured may review a copy of the arbitration rules at <http://www.alta.org/arbitration>.

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American Digital Title Insurance Company

PRIVACY POLICY NOTICE

PURPOSE OF THIS NOTICE

Title V of the Gramm-Leach-Bliley Act (GLBA) generally prohibits any financial institution, directly or through its affiliates, from sharing nonpublic personal information about you with a nonaffiliated third party unless the institution provides you with a notice of its privacy policies and practices, such as the type of information that it collects about you and the categories of persons or entities to whom it may be disclosed. In compliance with the GLBA, we are providing you with this document, which notifies you of the privacy policies and practices of American Digital Title Insurance Company.

Collection of Information: We may collect nonpublic personal information from the following sources:

- Information we receive from you such as on applications or other forms.
- Information about your transactions we secure from our files, or from our affiliates or others.
- Information we receive from a consumer reporting agency.
- Information that we receive from others involved in your transaction, such as the real estate agent or lender.

No additional nonpublic personal information will be collected about you, unless it is specifically stated otherwise in an amended Privacy Policy Notice.

Disclosure of Information: We may disclose any of the above information to the following:

- To our affiliates or to nonaffiliated third parties as permitted by law.
- To nonaffiliated companies that perform services on our behalf or with whom we have joint marketing agreements, such as financial service providers engaged in banking, consumer finance, securities and insurance.

WE DO NOT DISCLOSE ANY NONPUBLIC PERSONAL INFORMATION ABOUT YOU WITH ANYONE FOR ANY PURPOSE THAT IS NOT SPECIFICALLY PERMITTED BY LAW.

Use, Retention and Disposal of Information.

- The information we use is collected from the sources referenced in this policy notice. We limit the right of access to your information to employees that need to use the information to respond to or process your request or transaction. The information is retained in accordance with State and Federal Guidelines. After we have utilized the information we dispose of the information primarily through locked boxes for shredding or is otherwise kept secure until shredded.

We restrict access to nonpublic personal information about you to those employees who need to know that information in order to provide products or services to you. We maintain physical, electronic, and procedural safeguards in compliance with Federal standards to protect your nonpublic personal information. We reserve the right to deny requests for nonpublic information if we determine the request is not valid or authorized. Any denial of request may be appealed by sending in a written request to the address below with an explanation as to why the Requestor believes the request is valid.

If you have questions regarding our privacy policy, please contact American Digital Title Insurance Company:

- By mail: 4949 South Syracuse Street, Suite 540, Denver, CO 80237
- By email: infotitle@munichre.com

Revised 8/5/16



Privacy Policy Notice

PURPOSE OF THIS NOTICE

Title V of the Gramm-Leach-Bliley Act (GLBA) generally prohibits any financial institution, directly or through its affiliates (including insurance companies and insurance agents), from sharing nonpublic personal information about a consumer with a nonaffiliated third party unless the institution provides the consumer with a notice of its privacy policies and practices, such as type of information that it collects about the consumer and the categories of persons or entities to whom it may be disclosed. In compliance with the GLBA, we are providing you with this document, which notifies you of privacy policies and practices of Meridian Title Corporation.

We may collect nonpublic information about you from the following sources:

- Information we receive from you, such as on applications or other forms,
- information about your transaction that we secure from our files, from our affiliates or from third parties,
- information we receive from a consumer reporting agency and
- information that we receive from others involved in your transaction, such as the real estate agent or lender.

Unless it is specifically stated otherwise in an amended Privacy Policy Notice, no additional nonpublic information will be collected about you.

If you are concerned about the information we have collected, please write us.

We may disclose any of the above information that we collect about our customers or former customers to our affiliates or to nonaffiliated third parties permitted by law.

WE DO NOT DISCLOSE ANY NONPUBLIC PERSONAL INFORMATION ABOUT YOU WITH ANYONE FOR ANY PURPOSE THAT IS NOT SPECIFICALLY PERMITTED BY LAW.

We restrict access to non-public personal information about you to those employees who need to know that information in order to provide products or services to you. We maintain physical, electronic and procedural safeguards that comply with federal regulations to guard your nonpublic personal information.

No response to this notice is required, but if you have questions, please write us:

Meridian Title Corporation
P.O. Box 1255
South Bend, IN 46624-1255